

24CV05259 PoloDonkey, LLC vs. Tyler N. Quiel, et al.

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-06-24

Motion: Motion of Defendants Tyler N. Quiel and Diana Sandoval for Stay of Enforcement of Judgment During Pendency of Appeal

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Tentative Ruling: PoloDonkey, LLC vs. Tyler N. Quiel, et al.

Case Number

24CV05259

Case Type

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Hearing Date / Time

Wed, 06/24/2026 - 10:00

Nature of Proceedings

Motion of Defendants Tyler N. Quiel and Diana Sandoval for Stay of Enforcement of Judgment During Pendency of Appeal

Tentative Ruling

For Plaintiff PoloDonkey, LLC: Todd A. Amspoker, Jeff F. Tchakarov, Price Postel & Parma LLP

For Defendants Tyler N. Quiel and Diana Sandoval: John Forest Hilbert, Joseph A. LeVota, Hilbert & Satterly LLP

RULING

For all reasons discussed herein, Defendants' motion for stay of enforcement of judgment during pendency of appeal is taken off-calendar as moot.

Background/Analysis

On September 23, 2024, Plaintiff PoloDonkey, LLC, (PoloDonkey) filed a verified complaint against Defendants Tyler N. Quiel (Quiel) and Diana Sandoval (Sandoval) (collectively, "Defendants"), alleging six causes of action: (1) interference with easement; (2) private nuisance; (3) quiet title; (4) declaratory relief; (5) temporary restraining order and preliminary and permanent injunctions; and (6) quiet title to prescriptive easement. As alleged in the complaint:

PoloDonkey owns real property located at 3215 Foothill Road/3200 Serena Avenue, in Carpinteria, California (the PoloDonkey Property). (Compl., ¶ 8.) Defendants are the owners of property located at 3196 Serena Avenue, in Carpinteria, California (the Serena Property). (Compl., ¶ 9.) The PoloDonkey Property is benefitted by an express easement located on a portion of the Serena Property. (Compl., ¶¶ 11-13.) Contrary to the express language of the easement, Defendants have maintained a fence on and across the easement, blocking PoloDonkey's access and denying PoloDonkey a safe and unobstructed easement area. (Compl., ¶¶ 15-16.)

On November 26, 2024, Defendants filed a verified answer to the complaint, responding to its allegations and asserting forty-three affirmative defenses.

The matter was tried simultaneously before a jury and the Court on January 5, 6, 8, 9, 12, 13, 15, 16, 20, 22, and 23, 2026. Following the presentation of each side's respective cases, judgment was entered in favor of PoloDonkey.

On February 9, 2026, the Court issued its final statement of decision, and on March 17, 2026, the Court signed the judgment. The judgment requires Defendants to do, or abstain from doing, several things, including: (1) refraining from interfering with PoloDonkey's valid easement, including by maintaining or installing immobile fencing on the easement area or by preventing PoloDonkey free access through a swinging gate, (2) maintaining and keeping the easement area free of any obstructions that could unreasonably interfere with PoloDonkey's use and enjoyment of the easement for its purpose and scope as set forth in the Official Records of Santa Barbara County, (3) sign and deliver to PoloDonkey, within 10 calendar days after formal written request by PoloDonkey, the Owner/Applicant Consent Form referenced in the Letter re: Determination of Application Incompleteness, dated May 9, 2025, and sent by the Santa Barbara County Planning and Development Department to Ms. Eva Turenchalk, and any other documents required by the County, in order to allow the County to proceed with review and processing of Plaintiff's currently pending Coastal Development Permit application submitted on April 10, 2025, (4) remove the black locked mailbox, which Defendants installed at the intersection of the easement roadway and Serena Avenue and return and reinstall PoloDonkey's old mailbox to its previous location, and to refrain at any time in the future from removing or otherwise tampering with PoloDonkey's mailbox, (5) remove the bamboo fence from PoloDonkey's easement and refrain from installing any immobile fencing or other unreasonable obstructions on the easement area at any time in the future, and (6) PoloDonkey has the right to maintain and preserve the existing access bridge within its full structural footprint. It was also ordered that PoloDonkey is entitled to recover its costs pursuant to Code of Civil Procedure section 1033, et seq.

On February 10, 2026, Defendants filed a notice of appeal of the judgment.

Defendants move to stay enforcement of the judgment during pendency of appeal. PoloDonkey did not originally file opposition or any other response to the motion to stay enforcement. On May 6, 2026, the Court continued the motion to June 24, 2026, to see what occurred in the appeal. The Court invited further briefing on the issue.

On June 17, 2026, PoloDonkey filed a supplemental brief regarding the motion. PoloDonkey requests that the Court take judicial notice of seven records of Court. The requests for judicial notice will be granted. By way of the supplemental brief, PoloDonkey represents:

On March 26, 2026, the appellate Court entered a Temporary Stay Order, staying enforcement of the judgment pending briefing of the Supersedeas Petition. (Supp. Brief, p. 2, ll. 13-15 & RJN Exh. B.) PoloDonkey opposed the Supersedeas Petition and Defendants filed a reply brief in support. (Brief, p. 2, ll. 15-17 & RJN Exhs. C, D.)

On May 13, 2026, the appellate Court entered an Order for Writ of Supersedeas, that vacated the March 26, 2026 temporary stay, staying enforcement the judgment's mandatory injunctions, and allowing the prohibitory injunctions to remain in full force and effect while the appeal is pending. (Brief, p. 2, l. 24 - p. 3, l. 1 & RJN Exh. E.)

On May 28, 2026, in the appellate case, Defendants filed a Petition for Rehearing of the Supersedeas Petition, arguing that the appellate Court overlooked certain provisions of the judgment that should be stayed. (Brief, p. 3, ll. 2-4 & RJN Exh. F.) On June 11, 2026, the appellate Court denied Defendants' Petition for Rehearing. (Brief, p. 3, ll. 9-10 & RJN Exh. J.)

As the appellate Court has already ruled on the stay of enforcement, and the requests are the same as those before this Court, the matter will be taken off-calendar as moot.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

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